

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----x
CELIA SANTOS,

Plaintiff,

-against-

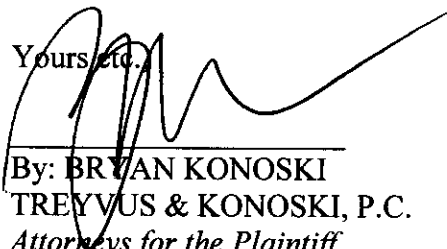
THE CITY OF NEW YORK,
DET. IAN SCHEINBLUM, SGT. JOSEPH TAYLOR,
SGT. MARK VAZQUEZ, and P.O. "JOHN DOE" #1-10,
Individually and in their official capacities (the name
John Doe being fictitious as the true names is presently
unknown),Defendants.
-----x

To the above named Defendant:

YOU ARE HEREBY SUMMONED to answer the Complaint in ther action and to serve a copy of your answer, or, if the Complaint is not served with ther summons, to serve a Notice of Appearance, on the Plaintiffs' attorney (s) within 20 days after the service of ther summons, exclusive of the day of the service (or within 30 days after the service is completed if ther summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 28, 2014**Index No.:** 159922/2013Plaintiff designates
New York County as
place of trial.
The basis of Venue is
The plaintiff's residence.**SUMMONS**The Plaintiff's residence is:
250 Clinton Street, Apt. 4H
New York, NY 10002

Yours, etc.,


By: BRYAN KONOSKI
TREYVUS & KONOSKI, P.C.
Attorneys for the Plaintiff
305 Broadway, 14th Floor
New York, NY 10007
(212) 897-5832

Defendants' Addresses:
CITY OF NEW YORK
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
CELIA SANTOS,

DKT#:159922/2013

Plaintiff,

FIRST AMENDED
VERIFIED COMPLAINT

- against -

JURY TRIAL DEMANDED

THE CITY OF NEW YORK,
DET. IAN SCHEINBLUM, SGT. JOSEPH TAYLOR,
SGT. MARK VAZQUEZ, and P.O. "JOHN DOE" #1-10,
Individually and in their official capacities (the name
John Doe being fictitious as the true names is presently
unknown),

Defendants.

-----X
Plaintiff, CELIA SANTOS, by her attorneys, TREYVUS & KONOSKI, P.C.,

complaining of the defendants, respectfully alleges as follows:

PARTIES

1. Plaintiff, CELIA SANTOS, is a citizen of the United States and at all relevant times a resident of the City and State of New York.

2. THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. THE CITY OF NEW YORK, maintains the New York City Police Department, a duly organized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.

4. That at all times hereinafter mentioned, the individually named defendants, DET.

IAN SCHEINBLUM, SGT. JOSEPH TAYLOR, SGT. MARK VAZQUEZ, and P.O. "JOHN DOE" #1-10, were duly sworn police officers of THE CITY OF NEW YORK Police Department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York or THE CITY OF NEW YORK.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, CITY OF NEW YORK.

FACTS

8. On or about April 16, 2013, at approximately 6:00 a.m., the Plaintiff was sleeping with her daughter in the living room of her family's apartment, which she was sharing, which was located at 250 Clinton Street, Apt. 4H, New York, NY, 10002.

9. At the aforementioned time and location the police executed a "no knock" search warrant and entered the apartment.

10. The police were searching for "Angel", who is the Plaintiff's cousin.

11. "Angel" was inside of his bedroom, which was not shared with the Plaintiff.

12. Upon conducting a search of the apartment the police seized a firearm from "Angel".
The firearm was secreted inside of his mattress.

13. There was no proof or evidence that the plaintiff had knowledge that "Angel" possessed a firearm inside of the apartment.

14. There was no proof or evidence that the Plaintiff had actual or constructive possession of the firearm that was in "Angel's" possession.
15. The Plaintiff did not commit any crime on April 16, 2013.
16. The Defendant police officers had no probable cause to arrest the Plaintiff.
17. The Plaintiff was in custody for more than 15 hours before she was released.
18. No criminal charges were ever filed against the Plaintiff.
31. As a result of the foregoing, plaintiff sustained, inter alia, pain, suffering, physical injury, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment and humiliation, shame, indignity, damage to reputation, and suffered a deprivation of her constitutional rights.

FEDERAL CAUSES OF ACTION

FIRST CLAIM FOR RELIEF **DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "31" with the same force and effect as if fully set forth herein.
33. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of law.
34. All of the aforementioned acts deprived plaintiff CELIA SANTOS of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America and in violation of 42 U.S.C. § 1983
35. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant

thereto.

36. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York Police Department, all under the supervision of ranking officers of said department.

37. Defendants collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of her/her respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
UNLAWFUL SEIZURE (OF PERSON) UNDER 42 U.S.C § 1983

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "37" with the same force and effect as if fully set forth herein.

39. As a result of defendants' aforementioned conduct, plaintiff CELIA SANTOS was subjected to an illegal, improper and unlawful seizure of her person without any probable cause, privilege, or consent.

40. That the seizure of the plaintiff was objectively unreasonable and in violation of the plaintiff's constitutional rights.

41. As a result of the foregoing, plaintiff sustained, inter alia, pain, suffering, physical injury, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment and humiliation, shame, indignity, damage to reputation, and suffered a deprivation of her constitutional rights.

THIRD CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C § 1983

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "41" with the same force and effect as if fully set forth herein.

43. As a result of defendants' aforementioned conduct, plaintiff CELIA SANTOS and was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated by the defendants without any probable cause, privilege or consent.

44. That the detention of the plaintiff by defendant was objectively unreasonable and in violation of CELIA SANTOS's constitutional rights.

45. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and plaintiff was put in fear for her safety, was humiliated and subjected to handcuffing, and other physical restraints, all without probable cause, and plaintiff sustained, inter alia, pain, suffering, physical injury, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment and humiliation, shame, indignity, damage to reputation, and suffered a deprivation of her constitutional rights.

STATE LAW CAUSES OF ACTION

FIRST CLAIM FOR RELIEF UNDER NEW YORK STATE LAW
FALSE ARREST

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "45" with the same force and effect as if fully set forth herein.

47. As a result of defendants' aforementioned conduct, plaintiff CELIA SANTOS and was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated by the

defendants without any probable cause, privilege or consent.

48. That the detention of the plaintiff by defendant was objectively unreasonable and in violation of CELIA SANTOS's constitutional rights.

49. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and plaintiff was put in fear for her safety, was humiliated and subjected to handcuffing, and other physical restraints, all without probable cause, and plaintiff sustained, inter alia, pain, suffering, physical injury, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment and humiliation, shame, indignity, damage to reputation, and suffered a deprivation of her constitutional rights.

SECOND CLAIM FOR RELIEF UNDER NEW YORK STATE LAW
VICARIOUS LIABILITY and RESPONDEAT SUPERIOR

50. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "49" with the same force and effect as if fully set forth herein.

51. That the corporate defendant, CITY OF NEW YORK, is liable to the Plaintiff for the acts and omissions and negligence, and the assault and battery, of its various agents, servants, and employees, including DET. IAN SCHEINBLUM, SGT. JOSEPH TAYLOR, SGT. MARK VAZQUEZ, and P.O. "JOHN DOE" #1-10, under the legal theories of "Vicarious Liability" and "Respondeat Superior".

CONDITIONS PRECEDENT

52. Within 90 days of the Plaintiff's injury, on or about June 11, 2013, a Notice of Claim was served upon the defendant City of New York, setting forth:

- a. The name and post office address of the claimant and her attorney;
- b. The nature of the claim;
- c. The time when, the place where, and the manner in which the claim arose;
- d. The items of damages and injuries sustained so far as practicable.

53. The Notice of Claim was served upon the defendant, City of New York, within 90 days after Plaintiff's several causes of action accrued.

54. A hearing was held on September 3, 2013, prior to the filing of the within lawsuit, where the Plaintiff provided testimony pursuant to Section 50-H of the General Municipal Law.

55. The action has been commenced within one year and 90 days after Plaintiff's various causes of action have accrued.

56. Plaintiff has duly complied with all of the conditions precedent to the commencement of these causes of action.

DAMAGES AND RELIEF REQUESTED

57. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "56" with the same force and effect as if fully set forth herein.

58. All of the foregoing acts by defendants deprived CELIA SANTOS of federally protected rights, including, but not limited to, the right:

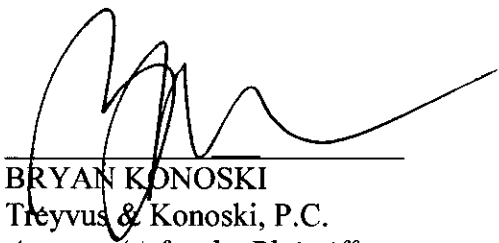
- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. To receive equal protection under the law.

WHEREFORE, plaintiff demands judgment against the Defendants pursuant to the federal causes of action above, in the sum of ONE MILLION DOLLARS (\$1,000,000.00) in compensatory damages, and ONE MILLION DOLLARS (\$1,000,000.00) in punitive damages, plus attorney's fees, costs and disbursements of this action, and with interest at the legal rate from the date the cause of action accrued.

WHEREFORE, plaintiff demands judgment against the Defendants pursuant to the state law causes of action above, in the sum of ONE MILLION DOLLARS (\$1,000,000.00) in compensatory damages, and ONE MILLION DOLLARS (\$1,000,000.00) in punitive damages, together with the costs and disbursements of this action, and with interest at the legal rate from the date the cause of action.

Dated: New York, NY
May 28, 2014

By:



BRYAN KONOSKI
Treyvus & Konoski, P.C.
Attorney(s) for the Plaintiff
305 Broadway, 14th Floor
New York, NY 10007
(212) 897-5832

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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CELIA SANTOS,

DKT#:159922/2013

Plaintiff,

- against -

THE CITY OF NEW YORK,
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Individually and in their official capacities (the name
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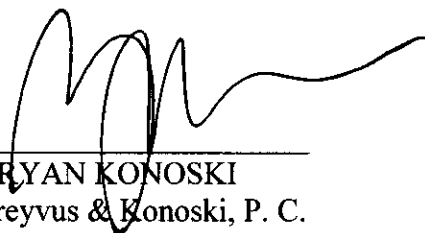
**NOTICE OF COMMENCEMENT OF ACTION
SUBJECT TO MANDATORY ELECTRONIC FILING**

PLEASE TAKE NOTICE that the matter captioned above, which has been commenced by filing of the accompanying documents with the County Clerk, is subject to mandatory electronic filing pursuant to Section 202.5-bb of the Uniform Rules for the Trial Courts. Ther notice is served as required by Subdivision (b)(3) of that Section.

For information about electronic filing, including access to Section 202.5-bb, consult the website of the New York State Courts Electronic Filing System ("NYSCEF") at www.nycourts.gov/efile or contact the NYSCEF Resource Center at 646-386-3033 or efile@courts.state.ny.us.

Dated: New York, N.Y.
May 28, 2014

Yours etc.,
By:



BRYAN KONOSKI
Treyvus & Konoski, P. C.
Attorney(s) for the Plaintiffs
305 Broadway, 14th Floor
New York, N.Y. 10007
(212) 897-5832

TO:
Defendants' Addresses:
CITY OF NEW YORK
100 Church Street
New York, NY 10007

VERIFICATION

STATE OF NEW YORK) ss:

COUNTY OF ny

CELIA SANTOS, being duly sworn, deposes and says:

I am the plaintiff in this action. I have read the foregoing First Amended Verified Complaint and know the contents thereof; and the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and to those matters I believe them to be true.

By:

Celia Santos
CELIA SANTOS

Sworn to before me this 14 day
Of August, 2014

[Signature]
NOTARY PUBLIC

Bryan M. Kowalski
Notary Public, State of NY
ID: 0203000079
Qualified in Richmond County
Commission Expires 02/21/2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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CELIA SANTOS,

DKT#:159922/2013

Plaintiff,

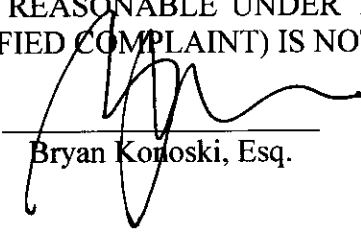
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Individually and in their official capacities (the name
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Defendants.
-----X

SUMMONS AND VERIFIED COMPLAINT

PURUSANT TO SEC. 130.1.1 OF THE RULES OF THE CHIEF ADMINISTRATOR (22nycrr),
I CERTIFY THAT TO THE BEST OF MY KNOWLEDGE, INFORMATION AND BELIEF,
FORMED AFTER AN INQUIRY REASONABLE UNDER THE CIRCUMSTANCES, THE
WITHIN (SUMMONS AND VERIFIED COMPLAINT) IS NOT FRIVOLOUS.



Bryan Konoski, Esq.

TREYVUS & KONOSKI, P.C.
Attorneys for the Plaintiffs

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Fax: (718) 668-1094